

- 13. Overruled.
- 14. Overruled.
- 15. Overruled.
- 16. Overruled.
- 17. Overruled.
- 18. Overruled.
- 19. Overruled.
- 20. Sustained.

13. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: MOTION TO CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

The Court denies this Motion without prejudice for lack of proof of service on defendants in both matters.

14. 9:00 AM CASE NUMBER: C26-00702
CASE NAME: ABDUL KHAMOSH VS. ZAKIA KHAMOSH WAKILY
***HEARING ON MOTION IN RE: STRIKE PURSUANT TO CCP 425.16**
FILED BY: KHAMOSH WAKILY, ZAKIA
TENTATIVE RULING:

Defendants' special motion to strike pursuant to Code of Civil Procedure section 425.16 is **denied**.

Background

Plaintiff Abdul Salam Khamosh alleges that he is a prominent businessman in the Afghan-American community who operates multiple gas station businesses. (Plaintiff's February 27, 2026 Complaint ["Compl."] ¶ 7.) Between 2008 and 2013, Plaintiff personally financed, advanced, and managed his late father Dr. Mohammed Aslam Khamosh's legal claims against the United States government regarding ancestral land in Kapisa Province, Afghanistan, incurring hundreds of thousands of dollars in out-of-pocket expenses and over \$1 million in lost income. (Compl. ¶¶ 17-23.) In recognition of these personal and financial sacrifices, his father executed a California Statutory Will on January 25, 2013, devising his entire estate to Plaintiff. (Compl. ¶ 24.) Following the father's death in January 2016, the federal claim settled for \$195,000, which Plaintiff alleges constituted the sole asset of the estate. (Compl. ¶¶ 25-26.) Plaintiff petitioned for probate in Contra Costa County Superior Court under Case No. P16-00362. (Compl. ¶ 28.) Defendant Zakia Khamosh Wakily ("Wakily") filed an objection and will contest strictly limited to five grounds: improper statutory execution/attestation, lack of testamentary intent, revocation by a purported living trust, mistake of fact regarding the purpose of the document, and undue influence. (Compl. ¶ 29.) The 2016 will contest contained no allegations of criminal forgery, fraud, theft of estate assets, or overseas bank embezzlement. (*Id.* ¶ 29; Defs.' RJN, Exh. 2.) In response to the contest, Defendants Mohammed Omar Khamosh ("Omar") and Najia Khair ("Khair") submitted sworn declarations under penalty of perjury attesting that the will reflected their father's intent, that the estate possessed no assets other than the \$195,000 federal settlement, and that Wakily's accusations against Plaintiff were "vicious lies" that were "totally untrue." (Compl. ¶¶